

PLACER COUNTY SUPERIOR COURT
THURSDAY, CIVIL LAW AND MOTION
DEPARTMENT 3
THE HONORABLE MICHAEL W. JONES
TENTATIVE RULINGS FOR JULY 9, 2026, AT 8:30 A.M.

Accordingly, defendant's motion for summary adjudication is denied as to the fifth cause of action.

In sum, the motion for summary adjudication is granted as to the second cause of action and denied as to the first, third, fourth, and fifth causes of action. Thus, the motion for summary judgment is denied because defendant did not establish it was entitled to judgment as a matter of law.

4. S-CV-0051680 HOLMAN, JASMINE v. PETSMART

Proposed Intervenor Edward Ruffin and Jaimie Grayson's Motion to Intervene

Preliminary Matters

Defendant's objections are overruled.

Defendant's request for judicial notice is granted. Plaintiff's request for judicial notice is denied.

Ruling on Motion

Proposed intervenors Edward Ruffin and Jaimie Grayson move to intervene pursuant to the mandatory, and alternatively the permissive, intervention procedures found in Code of Civil Procedure sections 387, subdivisions (d)(1) and (2).

The mandatory intervention statute provides "The court shall, upon timely application, permit a nonparty to intervene in the action or proceeding if either of the following conditions is satisfied: (A) A provision of law confers an unconditional right to intervene. (B) The person seeking intervention claims an interest relating to the property or transaction that is the subject of the action and that person is so situated that the disposition of the action may impair or impede that person's ability to protect that interest, unless that person's interest is adequately represented by one or more of the existing parties." (Code Civ. Proc., § 387, subd. (d)(1).)

On the other hand, the permissive intervention statute provides: "The court may, upon timely application, permit a nonparty to intervene in the action or proceeding if the person has an interest in the matter in litigation, or in the success of either of the parties, or an interest against both." (Code Civ. Proc., § 387, subd. (d)(2).)

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Here, proposed intervenors cannot establish a right to intervene by either statute. First, there is no provision of law that confers an unconditional right to intervene. Second, proposed intervenors do not have an interest in the action. (*Turrieta v. Lyft, Inc.* (2024) 16 Cal.5th 664, 680; *Moniz v. Adecco USA, Inc.* (2025) 109 Cal.App.5th 317, 330–35.)

The court also notes that proposed intervenors advance arguments about their right to intervene as potential class members. However, their complaint in intervention only asserts PAGA claims and proposed intervenors do not present any authority that intervention is proper where it is based on both class and PAGA claims.

Accordingly, proposed intervenors’ motion to intervene is denied.

Plaintiff’s Motion for Preliminary Approval of Class Action and PAGA Settlement

The unopposed motion is granted. The court has broad discretion in determining whether a class action settlement is (1) fair and reasonable, (2) the class notice is adequate, and (3) certification of the class is proper. (*In re Cellphone Fee Termination Cases* (2010) 186 Cal.App.4th 1380, 1389.) Further, the court reviews the moving papers along with the entirety of the court file to determine that the settlement is genuine, meaningful, and consistent with the underlying purposes of the PAGA-related statute. (Labor Code section 2699(s); *O’Connor v. Uber Technologies, Inc.* (N.D. Cal. 2016) 201 F.Supp.3d 1110.) The court must also determine whether the PAGA settlement appears fundamentally fair, reasonable, and adequate. (*Ibid.*)

The court has carefully reviewed and considered the Joint Stipulation of Class Action and PAGA Settlement and plaintiff’s moving papers filed in connection with the motion. The court determines a sufficient showing has been made that the class action settlement is fair, reasonable, genuine, meaningful, and adequate. The court also determines the settlement is fair, reasonable, genuine, and consistent with the purpose of PAGA.

For the purposes of the settlement, the court hereby certifies the class as defined on page 3, paragraph b of the Joint Stipulation of Class Action and PAGA Settlement. The court preliminarily approves the Joint Stipulation of Class Action and PAGA Settlement and Class Notice. The court approves the proposed form of the notice, and incorporates by reference the findings and orders outlined in the proposed order lodged with the court on April 21, 2026.

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The final approval hearing is set for **Thursday, December 10, 2026, at 8:30 a.m.** in **Department 3**.

5. S-CV-0052420 ARGHANDEWAL, MIRIAM v. CHIPOTLE MEXICAN

Non-Party Timur Safi’s Motion to Quash Subpoena and Motion to Sanctions

Non-party Timur Safi moves to quash defendant Chipotle Mexican Grill’s deposition subpoena for personal appearance and production of documents and things issued to him on March 2, 2026. (Code Civ. Proc., § 1987.1.)

California Rules of Court, Rule 3.1345 requires “any motion involving the content of a discovery request or the responses to such a request must be accompanied by a separate statement” and specifically includes a motion “To compel or to quash the production of documents or tangible things at a deposition.” (Cal. Rules of Court, rule 3.1345, subd. (a)(5).)

Here, non-party Timur Safi moved to quash the production of documents at a deposition. Yet, his motion was not accompanied by a separate statement as required. Nor did non-party Timur Safi attach the deposition subpoena or include the document requests in full to his moving papers, declarations filed in support of the motion, or reply papers.

Accordingly, the motion to quash subpoena is denied. (*Mills v. U.S. Bank* (2008) 166 Cal.App.4th 871, 892.)

Non-party Timur Safi and defendant Chipotle Mexican Grill’s request for sanctions are denied. (Code Civ. Proc., § 1987.2, subd. (a).)

6. S-CV-0053661 JACO, JOSHUA v. FCA US

Plaintiff’s Motion to Determine the Amount of Reasonable Attorney’s Fees, Costs and Expenses to be Paid by Defendant

Plaintiff’s motion is granted.

Civil Code section 1794, subdivision (a) allows a buyer of a vehicle to bring an action for recovery of their damages and other legal and equitable relief for any failure to comply with obligations arising under the chapter. (Civ. Code § 1794, subd. (a).) If the buyer successfully prevails in their action, he or she may recover